

Chapter 7 Realism

[They are against school of formalism b/c in this case we should have to go only by the way which given to us but]

* There are two categories of legal realism - American legal realism and Scandinavian legal realism and we will focus on the American legal realism.

* "The word 'Realism' may have different meanings but 'Legal realism' mean testing theory by measuring them what is observed in the world.

- Attempting to test the theory by measuring what is the practice, is some what an intellectual action
- Realism is not focus on theory rather it focus on action oriented & it focus on testing theory by take account what is the practice

* It is originated in 20th c, The attempt (focus) of such school is trying to understand law rather than it's theoretical idealism, focus on the practical observance or action oriented

* When we look legal realism it focuses on day today operation of the law. The main concern is to discover how judges/courts come up in decision or what are the main principles which make the court to decide such.

⊙ We can say that the main focus is the law in action

→ The American realism most of the philosophers are from the court but the Scandinavian are mostly from the university professor.

✓ American focus on the court (when we think of law it is empirical practical of the law in the court. It is narrow seen only in court of law. There's more to law than mere logical deductive application of rules

✓ Scandinavian focus on the legal system as a whole. They try to consider all facts, sociology, psychology, so when they try to investigate the hidden bases of the law they also take account these descriptive. More or less it seems have connection in the school of sociology.

AMERICAN REALISM

life of law is experience & logic ~~concepts~~

* The basement of American Realism is the idea stipulated by one who is philosopher, William James (Not American realist) but how as a philosopher of pragmatism.

* The American legal realism is created to challenge the Black letter or the Abstract legal rules laid down in a book.

* Holmes & Brandeis are the founder of realism (Mental father of legal realism).

→ They try to reject analytical/theoretical issue and they focus on pragmatic or law in action. is the matter of jurisprudence

As to them when we think of law it is not the things stated by the law maker. Rather it is law what is practiced in the court. The law for them is the last decision of the judge so usually in the judgement process the thinking (personal thinking) of the judge has great influence rather than the law which issued by certain institution. so they give great role for the judges. They're sceptist (law/statute/code is not the only thing which influence the outcome or the last decision).

The major uncertainty problem is from the fact finding and also in the court such problem are also existed the judge did not read the cases fully. rather they read the judgement only & focus on the problem of judgement/especially in appellate courts.

* Always we should focus on the factual finding.

Eg. The girl goes to house of her boy friend & she sue he has raped me.

2. They were talking with her boy & they were arguing about... & the one who see their argument tell for police there is problem there (Abduction)?

* pragmatism voids the abstract issue, fixed principles, closed system rather it focus on the Action/practice of the ~~real~~ world, it doesn't focus on what they are on paper.

Holmes (1841-1935) | The life of law is not logic, it has been experienced.

Law as a prophecy of the court:

- ✓ He serve as judge in US Supreme Court.
- ✓ The law for him "it is nothing but a tool to for predicting what judgement that a judge or a jury will make (decide)"
x statutes/codes do not bind the judge rather they serve as a means for what the judge decides.
- ✓ From his "idea" when we try to understand law we should understand from the point of (focus of) the outcome (the judgement) or end result.
x The end result (judgement) is the most important thing in idea of Holmes to be called "Law"
- ✓ There're two important concepts
 1. prediction concept of law: The law is what the jury will decide
 2. More than logical application of the statute policies, **personal** **prejudice** do have more **impact** (subjective feeling/experience of judge)
eg: one girl cause a damage for another girl b/c of her failure to park the car. But she make more things to make healthier the injured girl. & the Attorney knows this so he sue her by left all the things which make them liable (subject to sanction)

when we try to define law which should try in the context of what actually the judges practice.

- ✓ He is rule sceptic ^{+ opponent} b/c He says that more than legal rules/statutes other things have more impact on final result of the decision. So He decreases the application/observance of the appropriate rules.

what the court do in fact -- is what I mean by the law

- The "Bad Man" understands that there is thing/force He can't challenge, that thing is the decision imposed by the court. So when He make bad things firstly He will consider what will be the sanction imposed on him for his bad Action by court.
- He teach his students law and morality, should be distinguished & when we think of law the focus is the end **result** the judgement
x The bad man. Want to know consequence of his Action not because He's moralist but b/c He know there is law (He can't challenge as applied by court)
Limitation of Holmes
- He disregard the law which establishes the judicial organ. b/c the judicial organ is not established by judicial decision.
- what the court do in fact -- is what I mean by the law. It makes the judges don't make any mistake. But in practice the judgement of the lower may be changed by appeal...
- He thinks the judgement giving process as simple process
- He disregard laws that establish (more laws) Administration organ. & there're laws which don't go to the litigation process to the court.

He says if all words in moral connotation were eliminated from the law, the law will be precise (get precision). But we may lose the fossil record of a good deal of history & majesty got from ethical Association.

John Chipman Gray (centrality of the judge)

Law as a rule of conduct laid down by the judge.

✓ He believe on centrality of the judge & judges laid down law.

- ⇒ He believe that the state exist to promote & protect human interest. so this Activity (promote & protect) is done through rights & duties. (as a means)
- ⇒ There is no universal knowledge regarding to rights & duties. so If there is no universal knowledge about R & D. No one knows perfectly his rights and duties against the other individual.

? If an individual not know perfectly his right & duties, what is the consequence?

✓ The state establish judicial organ to determine the right & duty of individuals. and also state

* The judges in this institute will determine rights and duties by setting down what fact exist. and laid down rules/principles from the very existing fact. For Him these principles are **Laws**.

Acc to Him: The laws are used for determining rights & duties. so whenever we think of law from gray conception

"Law" is a principle laid down by judges to determine rights and duties of individual

Generality: All laws are judge made laws. Acc to gray b/c these laws are sort out by the judge to determine duties & rights and solve the existed problem & such.

? What about statute & parliament ---?

He says They are not laws by theirself (b/c their enactment these can't be law rather they will become law when these law are practiced and applied by the court. They get life & law when they practiced (actually used by the court & law).

⇒ Gray Make distinction b/w "a law" & "The law"

"a law": are these rules enacted by the parliament or other administrative organ.

"The law" are these rules applied by the court to solve the existed cases (problems).

So we can conclude that "a law" is a source of "the law". for him statutes, precedents, ... are source only b/c they are "a law" but "The law" is the choice of the judge lastly in decision of the case.

We can conclude "law is the opinion of judges. in their decision. in order to determine rights & duties.

⇒ The distinction is based on what was the past philosophical views. which connect law to morality, religion.

- We have to focus on these laws (the law) actually existed & practiced by the court & law.

Hoimes: says what ever the court decide is "a law" & it serve for the prophecies what will the court say (the way / end result) of the court to determine the right duty. so for gray the decisions of prior cases are also sources for the decision

- ⇒ He doesn't take into account the laws which doesn't take to the litigation process. Administrative laws.
- ⇒ If we use statutes as "a law" the decision of the court is also will not be predictable. If all things are used as a source his theory becomes more narrow

Rule Skepticism :- (idea of Jerome Frank HETS fact skepticist.)

- ~~Rule says~~ Traditionally what the rule says will be implemented. But there are many other factors so there's no possibility to use the law as it said fully.
- Karl Llewellyn He change his idea in his latter book b/c the defn of law is not sufficient & say laws means for ----

- One of American influential legal philosopher and he used WWII as base of his idea.

- For him "Laws what the officials of the court says" not only judges rather it include clerk, judge --

- Unlike Holmes & Gray who believe that law is decision of the judge

- There is no adequate definition of the law. or it is difficult to give definition "and he change his first definition law is what official of court says and replace it by saying (defining).

"Laws are a means for achievement of social end"

so law should be made to serve the present & future generation and the dev't (the idea of law must be forward viewing) looking forward ~~onward~~ it become the machine which push the people forward & take into account future
 - "Laws doesn't describe/prescribe how the judge work & they also doesn't prescribe the individual to behave in certain way. and also these laws are not considering/prescribing the fact (practiced) (HETS also said rule skepticist b/c of this idea)

- In his book "MY Philosophy of Law" He describes the function of law "Jobs of law are -- to achieve 1. To aid survival of the community. 2. To engage in quest of justice, efficacy and richer life.

1. disposition of trouble cases. Solving grievance dispute used as garage of repairing works. We are trying to "Remake the order of the society". If we fail to remake --- this function is after the existence of the problem.

2 preventive channels of conduct: The function of law before the happening of disorder Unlike the first function. It used so as to avoid trouble & looks at purpose of new legislation.

3 Allocation of Authority and arrangement of procedure. This is somewhat advance allocation of Authority (giving Authority to individuals) This mark action as being authoritative

4. The provision of directives and incentive. In this case we think of how we manage/lead & how we take the society into the change The next organization of society is a whole so as to provide integration, direction & incentives.

5. Juristic Method: Mean the ways we use to enhance the law function But not the above 4 function rather functions other than these it is as used in law and the settlement of disputes.

General 1. The first 3 function of law are essential for the survival of the continuation of the society. So if we fail to (law fail) to address these the society becomes --
 1- The other 2 are forsaken efficiency of the law as a system

He also use some idea from Pound

- ⇒ Law is somewhat always under change
- ⇒ Law is as a means to social ends/control • when we connect this in gray law is a means to determine right & duty
- ⇒ The society is always in change even the society may change more faster than the change of the law. But the law must grow more faster than the society in order to address/govern the future existing problem.

Jerome Frank (factskepticist) (1889-1957)

- He was a philosopher & judge also
- possibly All American philosopher other than him are rule skepticist as He stated by his own. B/c They says The final decision is affected by other meanses than Formal rules.
- He is factskepticist - said that when cases are brought to the court the main action is fact finding. Judges are in a position
 - There is uncertainty in fact finding (investigation). The greatest uncertainty of judicial decision lies on fact finding, than rule finding.
- # Judges primarily try to find (investigate) the fact. then they find a rule which guide their understanding about the investigated fact.
 - One judge investigate another fact & the other investigate other so dit judges come up in different decision. b/c the investigated or the understand fact.
- # When ever you earn to get info from witnesses. one witness may clearly indicate the existed situation & other may not.
- So → judges have to clearly review all document which is given to them to find the fact of the case.
 - Many times judges see only the judgement (specially appellate courts)
- American legal realism focus on the role of court

- He just give too much emphasis to the judge (court). But there're different limitation on power of the judge. But He give an extreme power (emphasis) to the judge (court)
- His idea may be implemented under common law system but it is difficult to implement in civil law system as common law
- It has impact on very legal system if we take into account the individual judge understanding (investigation), the judgement is also different on one case if it investigated by dit judges. so the society will not have trust on the legal system
- # From years before there're judges dismissed by decision of the judges management Gubare who decide cases by only logic without using any legal provision.

Eg:- one teacher use two glass & fill these one in water & the other in katicala. & put equal no of fish in both glass. The fishes which entered into the water becomes healthy & alive. But those entered into katicala becomes die b/c Alcoholic content. then after the experiment He ask students what they understand from this experiment? Two students raised dit idea.

1. I understand that water is also makes us healthier like to that of those fishes.
2. I understand that katicala is good b/c If we drink it, it'll kill Micro Organisms which found in our body.

Enforcement of Morality.

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- ① In this chapter the main point is the question that
 ? Is it possible to enforce morality by using law as a means?
 ↳ Mostly There're some issues of Morality which are Business of Law. But all moral aspects are not Business of Law.
- * Allen Turing (He is one who break the war code of Germany. He help England to be winner in WWII & He is said the one who decrease the length of the WWII) But He become guilty of Homo sexual crime & He become arrested But He suicide Him self while He was in prison. in 1952. then the England govt make arrangement to make research. why He do such acts. And this investigation led by Wolfenden - - - . By the way England was in way to enact law of Turing (to request (give) pardon for those who become suicide (affected) by Homo sexual acts and for Turing. The England president in 2009 & the queen in 2013 say that we are asking excuse for the act of our govt on Turing & They announce that He is pardoned. The investigation is called Wolfenden report (the report of department committee Homosexual offences & - - -

- ② There're Two recommendation which are putted for the British government by the investigation.
- 1, private prostitution should be remain legal as there was in the past but they can't make it public (advertisement) & solicitors
 - 2 Male Homosexual act in private b/n consenting adult over the age of 21 should be legalized
- But the govt doesn't accept these recommendation at immediately rather they accept it from long after. Eng - Wales, Ireland - Scotland.

- ③ The report says we should not make Homosexual act criminal act bc the function of criminal law is not to intervene in the private life of the individual rather to protect public order, the people (society) from some ^{attack} acts. so this report is based on mainly on ideas of John Stuart Mill classic idea of liberty. which says
- ↳ We intervene on individual life of the society or liberty of individual. if they cause harm on other individual.
 - So He says we are not expected to intervene even his action has effect on moral / mental / physical aspect of himself.
 - ↳ only for the sake of self defence we can enforce law. (if the
 - ↳ the aim of law is to protect people from other attack not from your own attack

Legal moralism: says we enforce morality irrespective of the impact of these principles (acts)

paternalism: say the law should take care about one man himself from his action (consequence) The law should intervene on individual act

Generally John Stuart & Wolfenden do not accept morality enforcement But we may use/enforce morality in exception (some little acts)

Lord patric Devline

- * Sir patric devline He come up in divided & Legal Enforcement & Morality.
 - ✓ From Wolfenden report we see that we can't enforce morality. Using law rather the act have effect on other individual. But Devline idea clearly articulate justifications stipulated by the Wolfenden report when they come up in conclusion.
 - ✓ He said that "The society do have the right to make judgement on all matters of morality. Meanse if the society judge on morality that must be respected by individual b/c the society has right
 - ✓ one of the justifications of Wolfenden report is "Consent" But Is it possible to conclude that release individual from being liable. Eg: If I give my consent to Abebe to kill me. and if He kill me. Is it my consent make Abebe not liable & criminal? Eg: If we think of Incest/prostitution)

Generally consent can't overcome any immoral acts. As devline says if we allow consent can overcome against immoral act. We exclude the main essence of criminal law. The consent of the victim can't serve as justification for offender to become not liable of criminal act.

✓ In criminal act the crime committed is not on that individual rather the law thinks that crime is on the society.

- * If we allow these act because of individual consent only, even if it is immoral. we are against moral principles of the society.
- ✓ If we see most of criminal laws they are based on the morality of society & it is for respecting Moral value of the society. a

* Why we enforce Morality on the legal?

- Justification Q Why it becomes the business of criminal law if it is in private act. Then devline put 3 justifications
 - ✓ Has the society do have the right to pass judgement on all matters of Morality? If the society have right to judgement? Are Morals are the judgement of individual (private)?He answers that Not individual give judgement rather the society do have right to have judgement
 - ✓ If the society have right to give judgement is they can enforce these decision (Morals standards) using law as weapon? He Answers that yes the society can enforce
 - ✓ If the society can enforce morality using law Is that we need to be selective / all moral standards are enforced by using law? He says we should be selective & He ask ? How we select that moralities enforced by law & not?

Answers.

1. The society do have right to have judgement. If this is the case we can think that there's public morality or shared moralities.

✓ Devline says: Society is union of Morality/Politics... In this case the society have bondages which unite individuals.

This bondage shows us there're shared ideas/morals/issues. Eg: Many of western society think that marriage should be concluded b/w woman & man. But if the conclusion is held between men & men. From the beginning it is not fulfill the essence of marriage/creation of bondage.

- If your wife commits adultery u feels such act. But we shouldn't allow it even if her husband allows the act of his wife. We shouldn't allow legally. B/c The society also feels such act even if there's degree difference. If we allow such act even if they are by consent & private we make the institution of marriage at stake. If we allow the private individual judgement on morality, the very essence of the institution/ common idea of the society becomes at stake.

2. The society has right to enforce such moralities using law. Hesars: If the society have a right to have judgement, the law should respect the moral issues recognized by the society b/c the society recognize these issues because they are ~~more~~ useful to that society.

✓ If one commits Treason He is disrespecting the law of that country. So by analogy. The one who have obedience / not & live in that society. He should be bound by these Moral issues. & incorporated under the law unless the man who dis respect such issue becomes free

3. The society/ the law could not incorporate all moral issues. Eg: If u are rich man & your neighbour is very poor you should not expected to be bound by this moral issue.

• He says we have to be selective But How we can be selective, in whose eyes an act is being immoral?

Devline :- He Takes the standard of Reasonable man should be taken. Reasonable man is who is in straight who have right frame of mind (sound mind)

There is difference b/w rational man & reasonable man.
↳ It is more standardized using logic reason - - -

:- For Hem :- Immoral ideas in order to incorporated by the law such act should be accepted by that reasonable man

✓ If we say accepted by reasonable man. Is it come up in subjective individual judgement & isn't it contradict in the first idea. In the judgement of the society.

Generally Hesars. We can enforce the moral principles control & turn the

Criticism

1. One girl is increase of incurable disease & she is very ill then she give her consent to be killed. B/c the money for her medication ---- There is argument.

• He is not showing the distinction of enforcement of Legal morality or paternalistic.

HART Reply to Devlin

- He reply in 1963 by 3 lectures when he teach his students.
- In his lecture he develop/more support the idea of Mill & Wolfenden report (defend these idea) & He try also to criticise Devline.
- * He is not in a position to agree/accept idea of Mill & Wolfenden report

Criticism on Devline

- 1 For HART the view which Devline stands "by saying that "The society can use criminal law to enforce morality" is Misguided. Why?

Hart believes (likely Wolfenden report) there should exist area of private behaviour which is not Business of the law or allow to the society to intervene of the law. So HART is against Moral conservatism (undermine the idea of the Moral conservatives) Morality should enforce by law is not accepted by HART

• 1

→ one who do the act.

- A. coercion for the sake of the agent (individual) ^{The doer of the Action}
- B coercion for the sake of enforcing Morals of the society.

For him the first Moral pples are only the Business of the law.

- If we prevent the interest of individual by the law it is acceptable
- If we think Mill idea & HART The idea of Mill is some what Broad concept BUT HART is focus on the idea of paternalist law.

- for HART Devline doesn't make distinction b/w the paternalism and legal moralism.

HART: the Moralities enforced by the law is for the sake of the action doer for protect him.
Eg: If one have addicted by drug. It have impact on him we know it. So we should enforce such laws even if such law limits the privacy/liberty of that man.
B/c we know that it have impact on him. So for him

JUSTICE

- * The first idea raised by Aristotle about subject justice? He says justice is essential for the state. If the state have no justice this state may have no longer existence.
- # African leader support establishment of International criminal court & in the Rome convention there is provision that states. The ICC may intervene to prosecute officials who are not prosecuted by the law of their nation. If that country is member & if the security council give permission to ICC. But so after time ICC may want to investigate African leader so they disagree with it. Ethio is not a member.

- *? Which one is basic one peace / justice?
Eg: The Sudanese leader Al-Bashir is suspected by ICC & ICC want to preserve justice by investigation & prosecute him. But other Sudanese says If Al-Bashir is prosecuted The peace of the country is become at stake.

Justice: Treating equal peoples equally & unequal peoples unequally.

- objectively ascertained & relevant ground for our purpose
Eg: There're two employees

Equality in justice

In this case it have Arithmetical (comparing identity of the person is concerned) geometrical (Maintain some sort of proportion in our comparison)

- * Justice concerns on the proper ordering of things & persons within the society.

⊗ Aristotle says justice is Two type of justice

1. Universal justice

o obedience to laws (obedience to right laws)

2. Particular justice

- * Justice (obedience) based on the existed scenario. It is classified into two
1. Distributive
2. Remedial

Distributive justice / proportionate equality

- Every resource we have shall distributed equally for every individual. so for him this is done through LAW (so law should enact by addressing these resource distribution).

Corrective justice / remedial justice
* Wrong doing by one person against the other should be corrected. or the one who inflicted by that wrong action have right to get corrective justice or remedial justice

He tries to look justice from point of Is there equality of resources? Is there correction for the wrong action?

↳ His defn is also great one based on the time when he lives.

The corpus juris civilis (Justinian) give definition to justice
"Is the constant & perpetual wish to give every one what they deserves."

this definition is some what general expression of the justice
These definitions have some 3 overlapping ideas.

1. Individuals are at the center (to every one)
2. Impartial treatment (constant to every one)
3. There should some equality

* How the society cooperate for the interest of All? & How can we create such institutional cooperation for the sake of justice (work on ppl & justice)

His book John Rawls (Justice as Fairness)
Theory of justice

- He is near time well known & Admired philosopher
- He born in 1921 in USA. His father is lawyer (corporate lawyers) & His mother is Lawyer (feminist Activist).
- He is different from other American philosopher is He is focus on Abstract idea / Theory.
- The most complete idea of / argument of justice is forwarded by him than other philosopher

Acc to him when we think of the justice...
"should make beneficiary the lesser group / the large group equally." Means
The justice should serve minorities & Majorities.

His idea is some what have original position is needed to make or create society

* His idea is also interrelated with Social contract. for him There're preconditions for democracy. These are Basic Democratic Freedom (right to vote & to be voted / right of expression, right of democracy) or they are precondition for democracy. Or

* Before we do enter into social contract we need to have these pre conditions after fulfillment of these preconditions we can create social contract.
these preconditions were (in 18th & 19th are presumed
* At His time most ideas were (in 18th & 19th are presumed as old fashioned. But He says Social contract is not old fashioned in His original position.

idea is not existed practically. He says.

There is collection of people (not real collection). they make some bargain (but when they collected they have to disregard their past position, social position even his sex position & his selfish interest (called this idea **Veil of Ignorance**) they have only general knowledge. He says If we come up in this position we may come up in fully impartial justice principle.

• So If we fail (individual fail) to the Veil of Ignorance they can't come up in ppl in ppl which serve the Peoples equally / fairly / impartially. B/c If we fail to Veil of Ignorance they become subjective / selfish they argued for the sake of preserving their interest / the group which they beside.

So Human being can create social contract which is true & take into account equally all portion of the society. after they become successful on Veil of Ignorance.

? But Is that can we disregard all our background? If it is possible his idea is the best one. & we can develop principles.

? He creates some distinction between the concept of justice and conception of justice. He believe that any Theory of justice have to address both ideas

• Concept of Justice :- The role of its principle in assigning rights & duties (in defining the appropriate).

↳ This is mostly objective one

• Conception of Justice :- The interpretation of the role of those principles in a particular situation. which is subjective one. b/c it deals about a particular situation

• We can state the conception of justice in two ways.
1. Each person ^{specially focus on concept} participate in the very principle have to get equal right / liberty which should be compatible in the other individual do have. In this sense we are talking about the principles (right to vote, Freedom of religion, Freedom to think we should treat / give equal right / extensive right / at the most possible of implement it. But as much as it doesn't intervene in the liberty of other. it may be limited for the sake of only to liberty. we can't justify by other ground. However it is possible

2. If there is inequality it is arbitrary. However it is possible to implement inequality iff such inequality implement have advantage for all this is Exceptionally allowed.

He take this inequality in sense of distribution of resource. there is possibility of treating inequality for merit of All. He says that govt or govt office also opened by taking into account the merit so power distⁿ is also must be for Merit. But After All these the inequality is not fully disappeared from the society it may create by luck or by Motivation difference between individuals.

It seems it focus on 2nd & 3rd paragraph

? If the Two contradict what will be our Action?
He says we should give priority for the 1st idea / ICCPR
IN normal circumstances

in exceptional circumstances if the 2nd one is become
prior Ex: for survival purpose b/c w/out survival there
could not be the 1st idea / ICCPR rights

Will & Justice & Minority Right

- Canadian Political philosopher tries to relate justice w protection of minority right
- He is well known by his work 1. Animal ethics
2. Multiculturalism.

He said that simply giving universal human right is not enough for those minority groups, there should be an extended right for them beyond the rights given to the majority. this idea also found mostly liberal democratic countries.

- ✓ Poly ethnic composition is having many ethnic group
- ✓ Multi national groups which have their own identity.

? What is the challenge when there is such group

The challenge is "How to accommodate the difference of these different groups. Acc to him deserving / giving such a favorable treatment for those minority group may lead us to accommodate the challenge

- ⊗ He divide Minority into two types 1. immigrant
2. indigenous / (original) / National

✓ The protection we give for the two is not similar

● For indigenous groups we should give unique right to them b/c they are original settler in that society & they have unique history & also have attachment to the land.

● For immigrant group we should give less right because they are coming there by own consent & they're late comers. we may do that to integrate these groups w indigenous groups rather extending their right like indigenous.

? How can we distinguish indigenous & immigrant

There is a case on giving hydroelectric power & the Omo tribes life will be disordered b/c of the construction & there is also converse from Kenya. so one ethnic official says that we have no indigenous community in Ethiopia & Ethiopia is not party for conventions like unique right for indigenous

We may differentiate by the ff ways

1. Is that community Ethnic exist in the existence of the state
 2. Is their prior self governing system
 3. Is that group & society have common culture
 4. Is that they have institutions governing themselves.
- But Even using these system it is difficult to distinguish.

On the other hand:- Other says why we need to give special right/protection for those indigenous group up until we have a general/equal/protection & right for all the members of the state.

In different countries there is tendency to give such a unique right for those indigent people.

* Acc to Him There are 3 group specific right

1. Self governing right
2. poly ethnic right
3. Special representation right

1 Self Govt Right:- (Example by the system of federalism)

It is common specially in multi national state. on one hand, when we give self govt right, we are giving right to be governed by their own official (indigenous). if we extend such thing up to succession.

* The supreme court of Canada made decision says that there is internal self determination (giving right & linguistic to be selected on high official position) & External self determination (but to ask this the group must ^{in the state} be primarily bound by internal self determination. But the case of Quebec (French speaker) are not bound by the internal self determination. The court decide such decision because of the referendum to succeed from Canada 49 to 51%, Not succeed become provan

⊗ This help the group that to being escape from the challenge (duress) of the majority (dominance group) and make able them to govern them selves as they want and as they think (benefits their own self)

Internal self determination. The determination of self governing is in the boundary of the nation.
external self determination about the succession of state from the nation.

2. Polyethnic right (To exercise their own cultural particularities).

↳ rights given for minority to exercise their own cultural particularities. This helps the minority not to be swallowed by the majority group.

⊙ This right should not be temporary. It must be permanent.

* This right is given to integrate these minor culture w/ the majority (enhance the integration between the two's)

3. Special representation right

* When we compare it with the two it is a recent type of group special right.

* There should be some reserved seat for those minority like our case in HPR & HF

? Why we give group special right

Δ Equality argument: - If we want to have genuine equality, we should treat specially those minority groups, so as we think that there is some sort of difference b/w the group we should give special protection. For those we may give, veto power, land right, territorial right. So in this case we are making our difference, tolerable & creating cooperation rather than becomes means of conflict.

Special rights are for creating genuine equality b/c we should have to rectify the situations which exist w/in that minor society.

Δ HISTORICAL ARGUMENT: We give these right because of Historical agreement which signed by the founder of the Nation. & we may have also subsequent agreement which comes after the creation of the state.

* so by some sort of certain agreement to give special protection some sort of special protection.

* When the majority group form federation we may have diff justification 1. To protect them self from influence of other external group 2. To create great Nation.

But w/in this scenario: The dominance group create the federation for the sake of

protecting the dominance group not to be dominated by the minority

- ✓ The federation may be formed involuntarily (colonialism) or voluntarily. When voluntary federation is created, even in the UN charter states have a power of self-determination right. & in regard to this idea some say the charter doesn't clearly stipulate the right of the nation not to be colonized. & other says indirectly it includes the right not to be colonized also.

In one way or in other way the equality argument or historical arguments are works together in order to preserve justice. All these methods are in order to create the existence of justice.

All these things even giving protection for minority groups we are making these minor groups to reach at the start point of the competition.

Example we are giving Affirmative Action to women in order to make them near (reach) at start point of the competition. not to give some special right to deserve for them than the majority group.

Whenever we give such like right to minority it will not be in way of sacrificing the social, economical interest of the dominant group. B/c the dominant group will feel that they are 2nd national in that state. so when we give these protection to minor we should also respect & protect or preserve the interest of the majority also. But

How can we balance the both interest?

It is difficult to balance the interest of both group

- # In both idea of Rawls & Dworkin they agreed that we should avoid & compensate the arbitrary situations which are created in the state in order to preserve/creating justice.
- # When we see these countries which call them selves liberal, by the situation if we are liberal, there is equal treatment for all the members of the nation/state, why we need to give special protection for those minority group. Because these groups are not yet genuine equality.
- # What we are giving for the minority group in order to protect them specially. Is it enough/not enough what we are giving for them it is under question?

Rawls & Will

- * Rawls specially focus on philosophical aspect of justice
- * Will is more focus on pragmatic/practical aspect or enforceable aspect of justice.
- Rawls idea specially focus on overall aspect of justice
- Will is focus on mere fact of justice regarding minority

Liberity

- The act According to his/her own will
- Based on the ideological difference we have two diff type of liberity

1. Authority of individuals and absence of external influence

- ✓ It is the Western idea & it developed there - ^{France} ^{America}
- ✓ As it founded/created in west it have acceptance at the present day through out the world. b/c All individual rights are included in this concept. their Nature have this concept.
- ✓ In this case more (negative duty) prohibit govt not to intervene ---

2 Focus people in group but not rule out individual

- It is the Eastern idea & developed there
- In this case more (there is positive duty in this case or the govt have a power to intervene to act positively)
- All group rights are found in this aspect.
- The state have a duty to perform some sort of Actions.

At present day Both the two are recognized But Mostly the western writers focus on the first idea.

Isiah Berlin (Two concept of liberity)

- He is Jew philosopher & educated in Oxford & known in criticising totalitarian & Authoritarian govt
- When we think of liberity there are two concepts

1. Negative liberity.

* A margin right that the individual can Exercise w/out interference of other; margin mean limited []

* We should have to make some sort of limitation on the Freedom of individual. If limitation is not created it will have impact on the other. So one can Exercise his (liberty) freedom up until such acts do not have impact on the other so freedoms other than the margin must have limitation.

✓ He said that "I am normally said to be free to the degree to which no men interfere with my activity."

If certain individual tries to do some sort of acts & if there is intervene from other we can say that He is not free

- we limit the freedom in order to protect the other individual
- But How wide the range shall be limited? It is difficult to provide the range of limitation of liberity.

• we may decide the range by see the Optimist philosopher & pessimistic philosopher.

- * Optimist philosopher says Human beings have good behavior so there is no fear if we extend the margin of limitation.
- * Pessimistic philosophers says that the right which we give for individual the margin should be narrow.
- Both agreed that there will be margin of right without interference. The optimist says a human being have good behavior they can live in harmony with others.
- So that is the case in order to determine the margin we may refer to these ideas.
- Is there some sort of necessary connection b/w the concept of democratic rule and individual liberty?
- Who governs me?
 - o We are our own master in the margin which provided for us w/out interference of other

POSITIVE liberty (The case of choosing which right to do/not to do from negative liberty)

- o this is about within the margin of right/negative liberty who will determine that to do/not to do.
- o In the margin of limitation we are our own master & we are ourselves decide what to do or not to do. But this doesn't mean we are genuinely free to do what ever we wish to do. rather you're in position to take into account different aspects in order to decide to do/not to do.
- Eg:- If you want to stay down & read other subject or go to class & learn jurisprudence, you are not decide it simply you're doing some sort of cost-benefit analysis. we are slave of nature & our uncontrolled passions.
- # The existence of wide range/margin of limitation exist in your negative liberty. will makes you subject to obstacle or difficulty in decision/positive liberty.
- o when we think of positive liberty. we are not genuinely free what ever wish to do even in the ^{negative liberty} our given margin. because of even we have ~~the~~ rational mind.
- Eg:- If one man wants to go out for night club. But He fears his wife & child. So even if he's free to go to night club but there is other things interfere in our decision.
- # Mostly when we think liberty we are specially focus/thinking on negative liberty/margin of right which we should exercise with out interference of other

EQUALITY

(There's a need to have more than one members to talk about equality)

- * Equality mean which tri partite relation (2 or more than two objects) in the evaluation. Two/one/more principles/criteria to evaluate the objects which we have compared
- * Equality mean also about the objects which we compare together & express their relationship / shared attribute
- * Equality is comparing two / more things in criteria & shared attribute

The idea of equality related in social justice.
So if this is the case we can't say that equality is simple principle because we may get diff principles & complex principles when we see social justice.

We can't give a short definition/idea about equality because it have a relation in social justice. Bc in social justice there are diff & complex principles

Principles of Equality & Justice

* When we see the principle of justice Equality is also always there so equality is constitutive feature of justice

Principles of Equality (The four well known principles)

* From these principles are having wide acceptance and also some are specially ideal.

* Formal equality & proportional equality are general idea and they are ~~more~~ less controversial than

* Moral equality & presumption equality are specific idea and are controversial than

1. Formal
2. Proportional
3. Moral
4. Presumption

Formal equality

If A & B are equal in a criteria called "C" these persons should be treated equally at least in regard to "C"

* This idea is somewhat similar in Aristotle :-
Treat like cases similarly / likely & vice versa.

* The standing point for this principle is rationalism. If we are rational it is not rational to treat people which have similar attribute (equal) differently (is not rational)
This principle mainly presuppose / based on rationality.

proportional equality

* This one is the extend point of formal equality

* The focus here is to create a degree equality. We should treat different (unequal) peoples only in regard to their equality with the similar attribute of their in common)
↳ so if they have equal attribute in our criteria we should treat them accordingly. But if they are unequal in regard to our criteria we should have to treat unequally in their attribute proportionally.

? One thing is raised here, especially in regard in past the time of slavery, is that mean treating slave peoples in their slave attribute?

Moral Equality. (begin from - - - - -)

* Before 18th there is a view that human beings are not equal so this idea is just attacked by the idea of natural right thought.

x

⊙ One research is under taken in Israel & measure the IQ of Ethiopian and they got lowest IQ they conclude that Ethiopians have lowest IQ. But the research is not in Ethiopia & the test is also based on standard of Western

* This idea we found it in Christian philosophers, stoics, Thomas Hobbe

↳ Thomas Hobbe says if there is no equal treatment one may inflict danger in other bc he is not treated equally so there is a need to maintain equality.

So from this we can take idea of every individual should have to be treated equally.

Presumption Equality.

- It is focus on procedural aspects (Eg: Equal distribution of resources for the public, so to create this we should work on the government ---) that helps us to achieve fair distribution of resource welfare, public source
- There should be impartial justification. when we give the ownership of something to certain group.

We do have different parameters of equality, especially on distributive equality, because if we have no parameter it will be open to interpretation then it becomes very difficult to implement these principles.

Distributive Equality

We have different mechanisms how we implement or enforce these four principles.

⊗ Simple equality: We can't make every individual equal in every situations / different situations.

✓ strict simple equality between individuals.

✗ Economic Liberalism

We need to restrict the role of govt with only maintaining public order. then individuals can do their work freely.

✗ Utilitarianism.

The interest of All should be, especially the interest of dominance group, respected

✗ Welfare equality

- They try to look equality in distribution of welfare of state equally.

✗ Equality of resource

- Focus on the equal distribution of the resource of the country. How the resource is distributed among the individuals is their focus

* Equality & Responsibility.
Focus on the Responsibility which individuals should
take.